

1. 23CV02828 Sage, Bobbie v. Humes, David

EVENT: Motion to be Relieved as Counsel (Defense Counsel)

The motion fails to comply with the notice requirements of CCP 1005. The proof of service states defendant and opposing counsel were served with the motion by mail on June 23, 2026. Factoring in the July 4 Court holiday (observed on July 3), June 23 is only 10 court days before the hearing. CCP 1005 requires a minimum 16 court days, plus an additional 5 calendar days for mailing.

Additionally, although the motion references the mandatory Judicial Council form MC-052, no such form was filed with the Court. Accordingly, the motion is continued to August 5, 2026 at 9:00am for counsel to file MC-052. Defense counsel shall provide notice to opposing counsel and Defendant of the continued hearing date and time.

2. 24CV02835 Thompson, Lawrence Jr et al v. General Motors, LLC

EVENT: Motion to Compel Disbursement of Undisputed Settlement Funds

Motion to Compel Disbursement of Undisputed Settlement Funds is DENIED. There is no legal basis providing the Court with authority to “compel disbursement of funds”.

3. 24CV04217 Schmidt, Aaron et al v. Ford Motor Company

EVENT: Defendant Ford Motor Company’s Motion for Terminating Sanctions, or in the Alternative, Issue Sanctions Against Plaintiff

Counsel is ordered to appear. The Court will hear from defense counsel as to whether they are available on any of the dates proposed by Plaintiffs in July for Mr. Schmidt’s deposition. If they are available, counsel shall inform the Court and opposing counsel as to which date they prefer, and Mr. Schmidt will be ordered to appear on that date. Failure to appear for deposition on that date by either Mr. Schmidt or his counsel will result in terminating sanctions upon further noticed motion.

If the dates proposed by Plaintiffs do not work for defense counsel, defense counsel should be prepared to provide a date that will work. Whatever date that is, Mr. Schmidt and his counsel will be ordered to appear on that date. If they have a conflict with the deposition date selected by Ford then they will need to make any arrangements necessary to ensure that they appear on that date. Otherwise terminating sanctions will be imposed.

As to Plaintiff Susan Schmidt, the request for terminating sanctions is GRANTED. The Court is inclined to deny terminating sanctions as to Mr. Schmidt primarily based on the fact he has proposed concrete dates for deposition. The vague promise that Susan Schmidt is “willing and able to coordinate dates” is woefully inadequate considering the history of discovery abuse culminating in the March 11 order, and the fact it has now been 1.5 years since Defendant began attempting to schedule these depositions. Accordingly, Plaintiff Susan Schmidt is dismissed from the case with prejudice.

Plaintiffs and their counsel are sanctioned, jointly and severally, in the additional amount of \$1,500.00, payable within 30 days’ notice of this order.

4. 24CV04294 Lendmark Financial Services, LLC v. Garret, Ledena B

EVENT: Motion for Service of the Summons and Complaint By Electronic Means

Motion for Service of the Summons and Complaint By Electronic Means is GRANTED. Plaintiff shall prepare a form of order.

5. 25CV01796 Capital One, NA successor by merger to Discover Bank v. Sweet, Michelle

EVENT: Plaintiff’s Motion for Summary Judgment or in the Alternative Summary Adjudication

Plaintiff’s Motion for Summary Judgment is GRANTED. The Court will sign the proposed order and judgment.